

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS MARCH TERM, A.D. 2021

CHAMBERS

JUSTICE

NAGBE

Mohinder Paul Dhaliwal of the City of Monrovia, Liberia
..... PETITIONER

VERSUS

His Honor Roland F. Dahn, Assigned Circuit Judge, Sixth Judicial
Civil Law Court 'B', and Rajinder Pal Singh Dhaliwal, by and thru
his Attorney-In-Fact, J. Q. Harris of Monrovia, Liberia
..... RESPONDENTS

GROWING OUT OF THE CASE:

Rajinder Pal Singh Dhaliwal, by and thru
his Attorney-In-Fact, J. Q. Harris of Monrovia, Liberia
.....MOVANT

VERSUS

Mohinder Paul Dhaliwal of the City of Monrovia, Liberia
.....RESPONDENT

GROWING OUT OF THE CASE:

Rajinder Pal Singh Dhaliwal, by and thru
his Attorney-In-Fact, J. Q. Harris of Monrovia, Liberia
.....MOVANT

VERSUS

Mohinder Paul Dhaliwal of the City of Monrovia, Liberia
.....RESPONDENT

GROWING OUT OF THE CASE:

Mohinder Paul Dhaliwal of the City of Monrovia, Liberia
.....PLAINTIFF

VERSUS

Rajinder Pal Singh Dhaliwal, by and thru
his Attorney-In-Fact, J. Q. Harris of Monrovia, Liberia
.....DEFENDANT

PETITION FOR A
WRIT OF
PROHIBITION

MOTION TO
INTERVENE

MOTION TO
RESCIND

ACTION OF
EJECTMENT

Heard: May 24, 2021

Decided: July 6, 2021

Counsellor J. Emmanuel R. Berry appeared for the petitioner.
Counsellor Cooper W. Kruah, Sr. appeared for the respondents.

MR. JUSTICE NAGBE, Justice in Chambers, delivered the ruling of the Court.

On July 7, 2020, the petitioner, Mohinder Paul Dhaliwal of the City of Monrovia, filed a petition for a writ of Prohibition before her Honor Jamesetta H. Wolokolie. While the petition was pending undetermined, the petitioner, on April 29, 2021, withdrew his petition of July 7, 2020, and simultaneously filed an amended petition on selfsame day, in which he prayed the Chambers Justice to issue the alternative writ against the co-respondent Judge, His Honor Roland F. Dahn, to stay all further actions in the case; reverse his erroneous, illegal and prejudicial ruling of February 2, 2020.

The petitioner, in his eight-count amended petition, contended primarily that the co-respondent, Rajinder Pal Singh Dhaliwal, movant in the court below, upon denial of his motion to intervene by the trial court, noted exception and announced an appeal to the Supreme Court sitting in its March Term A.D. 2020. Subsequently, he filed his approved bill of exceptions thus removing the case from the trial court; that while the appeal is pending undetermined by the Supreme Court of Liberia, co-respondent Rajinder Pal Singh Dhaliwal, on January 30, 2020, filed a motion to rescind in the trial court; that on January 31, 2020, co-respondent Rajinder Pal Singh Dhaliwal also filed a petition for a writ of certiorari but same was denied by the then Chambers Justice, His Honor Yussif D. Kaba following a conference had with the parties; that subsequent thereto, counsel for co-respondent Rajinder Pal Singh Dhaliwal begged and the co-respondent Judge agreed to assign and hear the motion to rescind filed on January 30, 2020; that the co-respondent Judge heard the motion to rescind and granted co-respondent Rajinder Pal Singh Dhaliwal's motion to intervene in gross

disregard to the Chambers Justice's refusal to grant the petition for a writ of certiorari; that at no time did the Chambers Justice send a mandate to the trial court commanding the Judge therein to rescind his ruling which denied co-respondent Rajinder Pal Singh Dhaliwal's motion to intervene as insinuated by the Judge in his ruling: "the court having reviewed the motion and the resistance thereto says that as an outcome of the conference held with the Chambers Justice on the petition for certiorari, it is of the belief that the motion to rescind must and should be granted and therefore our ruling of January 23, 2020, denying movant's motion to intervene is hereby set aside and vacated and the movant's motion to intervene is granted and the movant is permitted to intervene as a party defendant"; that the mandate of the Chambers Justice did not instruct the trial Judge to rescind his ruling on the motion to intervene.

The co-respondent Rajinder Pal Singh Dhaliwal argued that the co-respondent Judge acted upon the instruction of the then Justice in Chambers, His Honor Yussif D. Kaba, as a consequence of the conference had growing out of the petition for a writ of certiorari; that the Chambers Justice, His Honor Joseph N. Nagbe, must refuse jurisdiction because he is an Associate Justice of concurrent jurisdiction with Associate Justice Kaba and therefore cannot review the act of his colleague; that any complaint against a Chambers Justice is reviewable only by the full bench of the Supreme Court through a bill of information approved by two Justices of the Supreme Court; hence, the petition should be denied and dismissed in entirety.

From the foregoing facts gathered, coupled with the argument advanced by the parties, the singular question this Court must answer to settle the case is: whether or not prohibition will lie under the circumstance?

This Court answers in the affirmative. As is clearly seen from the records in this case, the trial Judge rescinded his ruling of January 23, 2020, in which he denied the co-respondent's motion to intervene in the court below. This Court says that the trial Judge was without authority to so do and that his belief that the then Chambers Justice, His Honor Yussif D. Kaba, instructed same out of his Chambers without any trace of the relevant communication to that effect, except verbally, as is being insinuated by the co-respondent and honored by the trial Judge is wanting and without foundation, especially so, in the absence of the adverse party.

Consistent with practice in this Jurisdiction, instructions, directives or mandates going out of the Chambers of the Justices are directed to the office of the Clerk of the Supreme Court and transmitted to the Judge or party concerned for the appropriate action contained therein. As a confirmation to what has been stated herein above, on January 17, 2020, the mandate of the Chambers Justice was sent out by and thru the office of the Clerk of the Supreme Court of Liberia and the relevant portion thereof is recited below:

"...by directive of His Honor Yussif D. Kaba, Associate Justice presiding in Chambers, you are hereby mandated to resume jurisdiction and proceed in keeping with law.

Very truly yours,
Atty. Sam Mamulu
Clerk, Supreme Court, R.L."

From the wordings of the mandate from the Chambers Justice, there is no such instruction to the trial Judge mandating him to rescind his ruling of January 23, 2020; the language is clear as to its intent and purpose, therefore, this Court says the trial Judge should have taken judicial cognizance of the content of the Chambers Justice's mandate

and not allowed himself to have been hoodwinked by the co-respondent, Rajinder Pal Singh Dhaliwal, into the miscarriage of justice.

As to the contention of the co-respondent that a Chambers Justice cannot review the act of another Justice of concurrent jurisdiction so Mr. Chambers Justice Nagbe must refuse jurisdiction, this Court disagrees and notes that the petition for the writ of prohibition filed by petitioner was intended to inhibit the trial Judge from proceeding with the case over which he has lost jurisdiction by approving the co-respondent Rajinder Pal Singh Dhaliwal's bill of exceptions following an announcement of an appeal to the Supreme Court sitting in its March Term A. D. 2020; that prohibition is the proper form of action to prohibit the arbitrariness of the co-respondent Judge. This Court therefore says that Mr. Chambers Justice Nagbe is in no way ascribing unto himself the authority to review the act of his colleague as the co-respondent, Rajinder Pal Singh Dhaliwal, would want this Court to believe because the then Chambers Justice, His Honor Yussif D. Kaba, did not, in his mandate to the trial court, instruct the trial Judge to rescind himself.

Moreover, this Court is of the considered opinion that Justice Kaba had sufficient knowledge to form his belief that the trial Judge had approved co-respondent Rajinder Pal Singh Dhaliwal's bill of exceptions and same filed with the trial court which by that act of the trial Judge, removes the case from the jurisdiction of the trial court; hence, he declined to issue the alternative writ of certiorari prayed for by the co-respondent, Rajinder Pal Singh Dhaliwal. It is the controlling law in this jurisdiction that the trial court loses jurisdiction over the case after an approved bill of exceptions had been filed. *Knuckles v. the Trading and Investment Bank, Ltd*, 40 LLR 49, 54 (2000); *Kanneh v. Manley*, 41 LLR 25, (2002). Further, Mr. Justice Ja'neh speaking for this Court held "we

are unable to agree with the respondent/appellant who has urged this Court not to give any credence to the motion to dismiss the appeal for the reason that said motion has been improperly venued. The trial Judge having approved the bill of exceptions within the time allowed by statute, not only did the trial court lose jurisdiction over the matter of the appeal, but thereafter was legally impotent to proceed any further to enforce the judgment appealed without being authorized to do so by the Supreme Court". *Ramsee Moore v. Mary Wilson*, Supreme Court Opinion, March Term 2012.

That said, this Court concludes that the trial Judge was in error when he entertained argument on the motion to rescind which allowed him to also grant the motion to intervene; hence, prohibition will lie to give relief. Further, the Supreme Court has held that: "prohibition will lie to give relief whenever a subordinate court proceeds with the hearing of a case in a manner which is contrary to known and accepted practice, and is in violation of proper and ethical procedure". *Togba v. RL*, 35 LLR 389 (1988).

WHEREFORE, and in view of the foregoing, and in accordance with the law of prohibition, it is my holding that the petition for the writ of prohibition has been properly applied for in consideration of the laws controlling. The petition for a writ of prohibition should be and same is hereby granted. The Clerk of this Court is ordered to issue the peremptory writ of prohibition, send a mandate to the court below commanding the Judge presiding therein to resume jurisdiction and give effect to this ruling. AND IT IS HEREBY SO ORDERED.

GIVEN UNDER MY HANDS AND SEAL OF THIS
COURT THIS 6TH DAY OF JULY A.D. 2021



HIS HONOR JOSEPH N. NAGBE
ASSOCIATE JUSTICE PRESIDING IN CHAMBERS